

GZ: 2021-0.518.795 dated August 5, 2021 (Case Number: DSB-D550.214)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

Criminal Finding

Accused: Martin N***, born on: 13.06.19**, S***straße 2*, 1*** W***

You have, as the responsible party within the meaning of Art. 4 No. 7 of Regulation (EU) 2016/679 on the protection of natural persons in the processing of personal data, on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter: "GDPR"), OJ L 119 of 04.05.2016 p. 1, committed the following acts and thereby committed the following administrative offenses:

You have

-

on **. June 2019, 1*:11 AM (time of the offense)

-

using an appropriate device

sent a message via email from the email address you used (martinn*.*mail.at) to the email address of the municipality S*** (post@gemeinde.s***abteilung***.at), with the following content:

"To the Department***

Since Ms. Susanne F*** works as a kindergarten teacher with you and said in the television program *** that she is *0% disabled because her neighbor is harassing her.

However, the court report states otherwise (see attachment).

Please confirm receipt.

Best regards"

In the context of the above-mentioned email message, you transmitted an attachment (Statement by Rudolf L***, *Dr., dated **.04.2014), which was made accessible to you as a party in a civil court proceeding before the Regional Court *** under case number *3 Cg *34/13r, which contains health-related data concerning Ms. Susanne F***.

You have therefore processed health-related data through the transmission of the email message along with attachments in violation of the prohibition in Art. 9 GDPR and disclosed the affected personal data to several individuals associated with the employer of Ms. Susanne F***.

You have thus violated the following principles of the GDPR:

- Principle of processing personal data in a lawful manner, in good faith, and in a transparent manner for the affected person ("Lawfulness, Good Faith Processing, Transparency")

Administrative offense(s) under:

Art. 5 para. 1 lit. a, Art. 9 para. 1 and para. 2 in conjunction with Art. 83 para. 1 and para. 5 lit. a GDPR, OJ L 2016/119, 1 as amended by L 2016/314, 72 and L 2018/127, 2

Due to these administrative offense(s), the following penalty is imposed:

Fine of Euro

if this is uncollectible

is,

substitute imprisonment

of

According to

€ 600.00

36 hours

Art. 83 para. 5 lit. a GDPR,

OJ L 2016/119, 1 as amended by L 2016/314, 72 and

L 2018/127, 2 in conjunction with § 16

Administrative Offenses Act 1991 – VStG

Furthermore, you are to pay according to § 64 of the Administrative Offenses Act 1991 – VStG: Euro as a contribution to the costs of the criminal proceedings, which is 10% of the fine, but at least 10 Euro;

Euro as reimbursement of cash expenses for

The total amount payable (fine/costs/cash expenses) therefore amounts to

Euro

60.00

660.00

Payment deadline:

If no appeal is filed, this criminal finding is immediately enforceable. The total amount is to be paid within two weeks after the legal force to the account BAWAG P.S.K., Georg-Coch-Platz 2, 1018

Vienna, IBAN: AT460100000005490031,

BIC: BAWAATWW,

in the name of

the

Data Protection Authority,

to be deposited.

As

the purpose of use, please indicate the business number as well as the date of completion.

If payment is not made within this period, the total amount may be collected. In this case, a flat-rate cost contribution of five Euro is to be paid. If payment is still not made, the outstanding amount will be enforced, and in case of its uncollectibility, the corresponding substitute imprisonment will be executed.

Reasoning:

1.

The following decision-relevant facts are established based on the conducted evidentiary proceedings:

1.1.

The accused sent a message via email from the email address he used (martinn*^{*}mail.at) to the email address of the Department *** S*** (post@gemeinde.s***abteilung***.at) at **. June 2019, 1*:11 AM, with the following content (formatting not reproduced verbatim):

“To the Department***

Since Ms. Susanne F*** works as a kindergarten teacher with you and said in the television program *** that she is *0% disabled because her neighbor is harassing her.

However, the court report states otherwise (see attachment).

Please confirm receipt.

Best regards”

1.2.

As an attachment, the accused transmitted a document (Statement by Rudolf L***, *Dr., dated **.04.2014), which was made accessible to him as a party in a civil court proceeding before the Regional Court *** under case number *3 Cg *34/13r, which contains health-related data concerning Ms. Susanne F***.

The latter document was transmitted by the accused unredacted.

1.3.

The person affected by the data transmission did not at any time (explicitly) consent to the processing of her personal (health) data by the accused.

1.4.

There are long-standing neighborhood disputes between the affected person and her spouse and the accused, which also form the subject of several civil and

Criminal Proceedings. The accused here was convicted by the LG *** on **.06.2013 under AZ *23 Hv *4/13c for actions against the affected party pursuant to § 218 (1) Z 2 StGB and § 107a (1 and 2) Z 1 StGB.

1.5.

The accused entered into a legally binding settlement with the affected party before the LG *** under AZ 29 Cg 23/19k on **.07.2020, in which he committed to:

- a) refrain from distributing the letter from Dr. Rudolf L*** dated **.04.2014 or similar documents describing the sexual and intimate life of the plaintiff, as well as medical diagnoses, particularly to neighbors and – with the exception of legal enforcement or defense of specific claims made against the defendant or asserted by him (including criminal proceedings) – also to authorities and the plaintiff's employer,
- b) refrain from ordinary insults, allegations, and questions regarding "masturbation" directed at the plaintiff, and to pay the plaintiff EUR 1,500 and EUR 3,500 as reimbursement of costs within 14 days from the legal effectiveness of this settlement to the plaintiff's legal representative.

1.6.

The affected party regarding the data transmission was employed by the municipality of S*** at the time of the offense and was on sick leave for several weeks in both 2013 and 2014. Since the illness-related inability to work was linked to the behavior of the accused, the department I*** of the municipality of S*** sent a letter dated **.09.2014 to the accused, demanding payment of 1*.1**,21 euros as compensation for earned income during the period of incapacity for work (including special payments) and employer contributions for the employee. Although the accused has not complied with this demand to date, the municipality of S*** has not taken any further legal or extrajudicial enforcement steps since then.

1.7.

According to his own statements, the accused is unemployed and does not earn any income, but only receives social assistance benefits.

2.

The findings are made based on the following evaluation of evidence:

2.1.

The findings regarding the transmission of the relevant health data in the sense of the accusation arise from the justification of the accused during the interrogation on **.06.2021, the remaining contents of the file, including the demand letter from the municipality of S*** to the accused dated 22.09.2014, as well as a related statement from the municipality of S*** to the data protection authority in the context of a request for official assistance, received via email on **.06.2021, and a supplementary statement from the accused on this matter, received via email on **.08.2021. The accusation was thus never disputed by the accused.

2.2.

The accused therefore admits the transmission of the data to department *** of the municipality of S*** but justifies it by stating that the municipality of S*** had raised claims for damages against him in September 2014 (out of court). Again, in the context of granting the parties the opportunity to be heard, with reference to the evidence resulting from the request for official assistance to the municipality of S*** regarding whether the accused was still called upon to pay damages in court or out of court after the year 2014, which was denied by the municipality of S***, the accused states verbatim as follows (spelling and grammatical errors as in the original):

"The municipality of S*** writes:

The claims at that time cannot be considered settled, however, a civil claim has not been made to date.

Therefore, I had to expect at any time that the municipality of S*** would demand the claims from me and that I would have to refer to the statement or possibly the expert opinion again, as Ms. Susanne F*** made false allegations against me publicly on the television show *** (https://www.youtube.com/****i), she is *0% disabled.

Also, at the municipality of S***, Ms. Susanne F*** made false allegations against me and therefore had to raise the claim against me, and I have not yet received any cessation of the claim and the proceedings cannot yet be considered resolved."

The facts were therefore to be regarded as undisputed; however, the accused holds the view

regarding the data protection legal basis that the relevant data transmission was (in a sense) covered by Art. 9 para. 2 lit. f GDPR.

3.

Legally, it follows:

3.1.

Art. 83 para. 5 lit. a GDPR stipulates that in the event of violations of the provisions of Art. 5, 6, 7, and 9 GDPR, fines of up to 20,000,000 euros [...] may be imposed. According to § 22 para. 5 DSG, the authority responsible for imposing fines against natural and legal persons as a national supervisory authority is the data protection authority.

3.2.

Art. 4 Z 2 GDPR defines the term "processing" as any operation or set of operations performed on personal data, whether or not by automated means, such as the collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction;

Art. 4 No. 7 GDPR defines the term "Controller" as the natural or legal person, authority, institution, or other entity that alone or jointly with others determines the purposes and means of processing personal data.

Art. 4 No. 10 defines the term "Third Party" as a natural or legal person, authority, institution, or other entity, other than the data subject, the controller, the processor, and the persons who are authorized to process the personal data under the direct responsibility of the controller or the processor;

Art. 4 No. 15 defines the term "Health Data" as personal data related to the physical or mental health of a natural person, including the provision of health services, from which information about their health status can be inferred;

3.3.

According to Art. 9 para. 1, the processing of personal data revealing racial and ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as the processing of genetic data, biometric data for the unique identification of a natural person, health data, or data concerning the sex life or sexual orientation of a natural person is prohibited.

Art. 9 para. 2 GDPR contains an exhaustive list of exceptions to the processing prohibition under para. 1:

a) The data subject has explicitly consented to the processing of the specified personal data for one or more specific purposes, unless the prohibition under paragraph 1 cannot be lifted by the consent of the data subject under Union law or the law of the Member States,

[...]

f) the processing is necessary for the establishment, exercise, or defense of legal claims or for acts of courts in the course of their judicial activities;

3.4.

The accused has, as stated above, transmitted an email message to the department *** of the municipality S*** on **. June 2019 (1*:11 AM) and attached a PDF document, from which information regarding the mental health and the privacy of Susanne F*** (the data subject under data protection law) can be inferred.

Thus, the accused qualifies as the data protection controller for the processing of health data concerning the data subject through transmission and disclosure to third parties.

3.5.

It was therefore necessary to examine whether the processing of health data carried out by the accused was covered by one of the exceptions exhaustively defined in Art. 9 para. 2 GDPR.

3.6.

As justification for the data transmission in question, the accused stated during his hearing (and again in his written statement regarding the parties' hearing on **.08.2021) that the data subject had falsely claimed publicly that he was causally responsible for a mental illness of the data subject and her associated sick leaves, and that this circumstance had led the municipality S***, as the employer of the

data subject, to approach him with claims for damages in September 2014 (cf. above under point 1.6).
3.7.

As established, the data subject did not at any time (explicitly) consent to the processing of her health data by the accused in the sense of Art. 9 para. 1 lit. a GDPR. In light of the accused's assertions, it was therefore necessary to examine whether the data transmission could be justified under Art. 9 para. 2 lit. f GDPR. Specifically, the question arises whether the accused was entitled to carry out the data transmission on **. June 2019 to defend against the claim for damages asserted against him (extrajudicially) by the municipality S*** on **. September 2014 (due to continued payment of wages to Susanne F*** for periods of her incapacity for work due to illness).

The permission provision of Art. 9 para. 2 lit. f GDPR represents a special case for sensitive data of the general permission provision of legitimate interest in the sense of Art. 6 para. 1 lit. f GDPR (Schiff in Ehmann/Selmayr, DS-GVO² Art. 9 Rz 47).

The term legal claims is to be understood broadly and includes claims under public and private law (Schiff in Ehmann/Selmayr, DS-GVO² Art. 9 Rz 48).

It is crucial that a legal conflict exists (Schiff in Ehmann/Selmayr, Art. 9 GDPR Rz 48; a conflict that compels the claimant to take procedural action).

The type of legal remedy pursued is not relevant (Kampert in Sydow, European General Data Protection Regulation, Art. 9 GDPR Rz 34).

Necessary means that without the data, the assertion of the claim or a defense against it would not be possible or would be significantly impeded (Kampert in Sydow, Art. 9 GDPR Rz 34).

The exceptions of Art. 9 para. 2 GDPR allow processing only in compliance with the other provisions of the GDPR, which includes a proportionality assessment in each individual case, provided that the exceptions explicitly provide for this (Korge in Gierschmann/Schlender/Stentzel/Veil, Commentary on the General Data Protection Regulation, Art. 9 Rz 19). The requirements of Art. 9 para. 2 GDPR must be observed in addition to the general processing requirements of Art. 6 para. 1 GDPR (Petri in Simitis/Hornung/Spiecker, Art. 9 GDPR Rz 2).

3.8.

In the present case, where the alleged disclosure involves the transmission of health data of Susanne F*** to third parties, the legality of this processing operation depends on whether the accused can rely on a legal interest that corresponds to the provision of Art. 9 para. 2 lit. f GDPR, specifically, whether the data transmission in question was "necessary for the establishment, exercise, or defense of legal claims [of the accused]." If this question is answered in the affirmative, the interest of the accused must be weighed against the confidentiality interests of the affected party (Art. 6 para. 1 lit. f GDPR, cf. regarding § 219 ZPO, OGH of July 24, 2019, 6 Ob 45/19i).

3.9.

However, since the municipality S*** has not taken any judicial or extrajudicial steps against the accused to assert any potential claim for damages based on the legal grounds presented above since the letter of demand dated **. September 2014, and considering the limitation period of § 1489 ABGB, according to which claims for damages must be asserted within three years from knowledge of the injurer and the damage, it can no longer be assumed regarding the time of the transmission of the health data on **. June 2019 that there was any legal conflict between the municipality S*** and the accused as the injurer; moreover, the accused does not refer in any way in his email to the department *** of the municipality S*** to any potential claim for damages against him, which he sought to defend against with the present letter.

3.10.

However, even assuming that at the relevant time there was a civil conflict between the accused and the municipality S*** in the form of a legitimate claim for damages against the accused, the transmission of the affected health data to the department *** of the municipality S*** would only be lawful if it was also necessary to defend against the claim. "Necessary" in this context means that without the data, the assertion of the claim or a defense against it would not be possible or would be significantly impeded (Kampert in Sydow, Art. 9 GDPR Rz 34).

3.11.

Regarding the present facts, it must be noted concerning the criterion of necessity that the accused was not requested to pay a damage amount by the department ***, but by the department I *** responsible for personnel matters in 2014. Therefore, the department *** was not the entity that had asserted any potential claim on behalf of the municipality S*** against the accused; rather, the department *** is responsible for kindergartens. Thus, it was not necessary for the accused to transmit a medical statement to this department, from which information regarding the mental...

Health and privacy of the affected individuals emerge in order to fend off a supposedly (still) existing claim for damages against him.

3.12. The data processing carried out by the accused was therefore ultimately to be classified as a completely arbitrary disclosure of health data to third parties, which was not covered by any of the exceptions stipulated in Art. 9 para. 2 GDPR. Finally, the accused, who as established had not been burdened with any further prosecution steps by the municipality of S*** since September 2014, could have defended himself in the event of renewed judicial or extrajudicial assertion of a claim by the municipality of S*** with a written statement (and a corresponding offer of evidence). The unsolicited transmission of health data of the affected individuals in 2019 to a different department than the one from which the request letter of 2019 originated—this nearly five years after the last contact by the responsible authority of the municipality of S***—was therefore ultimately unlawful.

3.13. In applying the requirements and obligations under Art. 5 para. 1 lit. a and lit. b in conjunction with Art. 9 para. 1 and para. 2 GDPR to the present case, the adjudicating authority concludes that the accused should not have carried out the transmission and disclosure of health data in question without the express consent of the affected individuals. In light of the established facts, the accused, as the responsible party according to Art. 4 no. 7 GDPR, is therefore accountable for the objective elements of the administrative offense under Art. 9 para. 1 and para. 2 in conjunction with Art. 83 para. 5 lit. a GDPR.

3.14. Regarding the subjective elements, it was to be established that in relation to the transmission and disclosure of health data of the affected individuals to the department *** of the municipality of S***, intentional conduct by the accused was to be assumed; this particularly arises from the fact that, as stated above, there was no legitimate legal interest in the sense of Art. 9 para. 2 lit. f GDPR, and the data transmission was therefore carried out for purely personal motives, rooted in the long-standing neighborly conflicts between the accused and the affected individuals.

4.

Regarding the assessment of penalties, the following should be noted:

4.1.

According to Art. 83 para. 1 GDPR, the data protection authority must ensure that the imposition of fines for violations under paragraphs 5 and 6 is effective, proportionate, and deterrent in each individual case. Furthermore, para. 2 of the same article stipulates that when deciding on the imposition of a fine and its amount, the following must be duly considered in each individual case:

a)

The nature, gravity, and duration of the violation, taking into account the nature, scope, or purpose of the processing in question, as well as the number of individuals affected by the processing and the extent of the damage suffered by them;

b)

Intentionality or negligence of the violation;

c)

Any measures taken by the responsible party or the processor to mitigate the damage suffered by the affected individuals;

d)

The degree of responsibility of the responsible party or the processor, taking into account the technical and organizational measures they have implemented in accordance with Articles 25 and 32;

e)

Any relevant previous violations by the responsible party or the processor;

f)

The extent of cooperation with the supervisory authority to remedy the violation and mitigate its possible adverse effects;

g)

Categories of personal data affected by the violation;

h)

The manner in which the violation became known to the supervisory authority, in particular whether and, if so, to what extent the responsible party or the processor reported the violation;

i)

[...]

j)

[...]

k)

Any other aggravating or mitigating circumstances in the specific case, such as financial benefits gained or losses avoided directly or indirectly through the violation.

According to § 19 para. 1 VStG, the basis for determining the penalty is the significance of the legally protected interest and the intensity of its impairment by the act. Furthermore, according to the purpose of the penalty, the relevant aggravating and mitigating factors, insofar as they do not already determine the penalty, must be weighed against each other. Special attention must be paid to the degree of culpability. Considering the nature of administrative criminal law, §§ 32 to 35 of the Penal Code are to be applied *mutatis mutandis*.

The income and asset situation and any maintenance obligations of the accused are to be taken into account when determining fines; however, this only to the extent that the directly applicable provisions of the GDPR do not displace the provisions of the VStG and to the extent that is ordered by Art. 83 para. 8 GDPR and Recital 148 regarding the procedural guarantees to be ensured.

4.2.

With regard to the present case, the following aggravating factors were considered in the assessment of the penalty:

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The transmission and disclosure of health data to the employer of the affected individual, whereby the processed data reveals information concerning the sexual and intimate sphere, constitutes a serious infringement of the rights protected by Article 8 of the European Convention on Human Rights (ECHR) and Article 7 of the Charter of Fundamental Rights of the European Union (CFR) regarding the privacy and intimate sphere of the affected individual.

The accused has acknowledged the transmission of the data in question, and therefore, there is culpability on the subjective side in the form of intent as defined in Article 83(2)(b) of the General Data Protection Regulation (GDPR).

4.3.

The following mitigating factors were taken into account in the determination of the penalty:

- The accused participated in the administrative penalty proceedings before the data protection authority and admitted to having carried out the data transmission, thereby contributing to the establishment of the truth;
- There were no relevant prior convictions against the accused at the data protection authority to date;
- The accused is unemployed and therefore does not earn any income, but only receives social benefits.

4.4.

The specific penalty imposed therefore appears to be appropriate in light of the established income situation of the accused concerning the value of the offense, measured against the available penalty range of Article 83(5) GDPR of up to €20,000,000, and its imposition is necessary to deter the accused and third parties from committing the same or similar criminal acts. In particular, in view of the long-standing neighborhood conflict, it seems imperative in terms of a special preventive effect to impose a monetary fine to deter the accused from further – identical or similarly situated – actions.